

Jai Prakash Dixit v. DVVNL

High Court of Judicature at Allahabad · Division Bench · 19 February 2026 · WRIT - C No. 52187 of 2011 · **Writ dismissed for want of prosecution; interim order vacated.**

HEADNOTE

Writ against recovery of Rs. 7,68,511 after a July 2010 check-meter inspection, alleging that notice within three days breached Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 (proceedings only after 7–15 days of check-meter installation). A Division Bench in 2011 granted interim stay of recovery and restoration of supply on a prima facie case. In 2026 a later Division Bench dismissed the petition for want of prosecution and vacated the interim order. The Clause 5.6(e) challenge was not decided on merits.

FACTUAL SUMMARY

Inspection of the petitioner's premises on 11 July 2010, said to be under the Electricity Supply Code, 2005, was followed by installation of a check meter. Within three days, on 14 July 2010, the licensee issued a notice proposing recovery of Rs. 7,68,511. The petitioner replied on 22 July 2010. The old meter was replaced on 17 September 2010. Without further notice, the Executive Engineer by order dated 9 June 2011 directed recovery of that amount. The writ challenged that order under Clause 5.6(e).

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

None appearing to press the writ against the 9 June 2011 recovery, the petition was dismissed for want of prosecution and any interim order, including the 2011 stay of recovery and direction to restore supply, stood vacated. The Clause 5.6(e) challenge was not decided. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE OF PROPOSED RECOVERY WITHIN THREE DAYS OF CHECK-METER INSTALLATION, AND THE SUBSEQUENT RECOVERY ORDER WITHOUT CONSIDERING THE CONSUMER'S REPLY, VIOLATED CLAUSE 5.6(E) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised in 2011; only a prima facie stay was granted; the petition was later dismissed for want of prosecution